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Submitter Information

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Organization: International Trademark Association (INTA)

General Comment

INTA is pleased to submit the attached document in response to the Request for Information. Please feel free to reach out to [REDACTED] if you have any questions or concerns about our submission.

Attachments

INTA Response to RFI on US AI Action Plan 15March2025

March 15, 2025

Submitted via <https://www.nitrd.gov/>

Response to Request for Information: National Science Foundation

AGENCY: Networking and Information Technology Research and Development (NITRD) National Coordination Office (NCO), National Science Foundation

ACTION: Request for information

1. Introduction

The International Trademark Association (INTA) is pleased to provide our response to the above referenced Request for Information. We are aware of the transcendental challenges and opportunities raised by Artificial Intelligence (AI) and are evaluating our positions on various Intellectual Property (IP) related topics. Our comments focus on high level principles that should guide the development of the proposed Artificial Intelligence Action Plan. In brief, although we recognize the potentially enormous impact of AI technology and tools on U.S. businesses and their relationships with the United States' trading partners, we believe that the American government should tread carefully before enacting any AI related legislation. The biggest challenge in forming an Action Plan is the need to strike the right balance between acceptable use of data to train AI modules, ensuring that creators can exploit their work for fair compensation, determining if/how works created wholly or in part by AI can or should be granted IP protection, and providing reasonable and consistent protection for individual privacy and freedom.

2. American Intellectual Property Law in Relation to AI

With the advancement of AI in general, and the advent of Generative AI in particular, numerous issues have arisen relating to AI technology. Few policy issues have greater implications on national security, global competitiveness, and innovation than the use of Artificial Intelligence. As such, AI policy warrants special attention to ensure that AI can be leveraged in a way that promotes innovation and protects intellectual property rights holders.

A central motivating factor for innovations and novel uses based on the ability of innovators to profit from their creations. Indeed, this is recognized by the United States Constitution in Article 1, Section 8, Clause 8 which states,

[The Congress shall have Power ...] To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive right to their respective Writings and Discoveries.

Our Founding Fathers realized that without securing rights for authors and inventors, the public would be unable to devote the time and expense necessary to advance technology and the arts. Technology advances on a daily basis. Our Founding Fathers realized that providing rights to authors and inventors would lead to the advancement of technology and the arts. By specifying that these rights should be secured for “limited times,” the US Constitution recognizes the tradeoff between rights of innovators to profit from their works, and the rights of the public to likewise enjoy the benefits of such advancements.

In the field of copyright in particular, the balancing of such rights has been in the forefront for Generative Artificial Intelligence. Two key disputes which are an offshoot of the advancement of Generative Artificial Intelligence are copyright protection for works of authorship created by Generative Artificial Intelligence, and the rights of creators of works to protect their works from data mining for inappropriate use in AI training.

A major issue to consider and to monitor is how the Copyright office analyzes and weighs the dichotomy between protectable works generated by human contributions and works created through Generative AI. Should the internal resolution of these issues by the Copyright Office be seen as stifling technological advancement or if resolution of these issues through the court system creates ambiguity or stifles technological advancement, then Congressional involvement may be warranted but only as a last resort.

The issue of the uncompensated use of works of authorship created by third parties to train Generative AI technology to create new works is the subject of an upcoming part of the Copyright Office’s on-going series of reports. This subject matter is, likewise, the focus of a number of copyright infringement suits working their way through the court system. At issue here is a delicate balance between encouraging the use of AI to create new content on the one hand, and the protection of existing and future works of authorship, on the other. How this issue is resolved merits close scrutiny. As mentioned above, if judicial decisions trend away from striking the delicate balance between fair use for inclusion of certain copyrighted works while at the same time protecting authors from having others commercially benefit directly from the copying of their works, a Congressional remedy may be appropriate.

Copyright protections will likely drive the future use of AI in society. Governmental Policy should strongly weigh the protections afforded by the Constitution and Congressional actions to make sure intellectual property rights continue to drive the advancement of technology and innovation.

We also notice equivalent issues with respect to Patents, especially in two circumstances. The first one is that the requirements for obtaining patents for industrial designs and inventions are different therefore, inventorship tests should be different to account for the difference in the underlying rationale for the requirements. The second, and more importantly, is our concern about the capacity of AI to artificially populate prior art given its capacity to create claims and inventions that have never been in control or possessed by an actual inventor. False or artificial prior art created by AI, block American inventors and prevent the competitiveness they could achieve through the patent system.

IP Law is intended to adapt to new technological advancements, and as new issues arise, the U.S. courts are well placed to approach these questions in a thoughtful and careful manner using the existing framework under the US Code (USC) and case law. There are questions about fair use and just compensation for inventions and creative works that are pending before American courts. The outcomes of these cases will enable actors on both sides of the AI equation to make risk-based choices on how they create and market new works.

INTA supports the premise that U.S. law currently provides stakeholders the breadth of protection necessary for enforcing their Intellectual Property Rights (IPRs). We do not support any legislative changes to the USC at this time.

3. Data Protection and Privacy in Relation to AI

While we assert the USC does not presently need amendments to its IP law, we do note an urgent need for harmonized Federal law for balancing privacy and data in AI training. Currently, data protection/privacy laws are a patchwork across America. American inventors are operating in an unstable risk environment. Legal certainty creates more incentives to innovate. We recommend developing clear legal standards for AI use of data sets that may contain personal data. As the proposed Action Plan is nationwide, we support regulation at the Federal level. Harmonization and legal certainty sow fertile ground for continued innovation in AI.

4. AI State of Play

The AI Action Plan should include a review and identification of AI applications so that potential problem areas may be identified and future issues anticipated. Such a survey should be reasonable in scope and prepared with guidance from AI industry experts. It may include existing and developing applications and learning models. While AI has unlimited use, the plan should reasonably balance consideration of additional regulation

for areas needing to be addressed, keeping in mind the protections already available. Any proposed legislation or regulation of AI should encourage innovation and recognize that AI, in its current and future forms, will have transformative, positive impacts across industries and society. Therefore, should regulation become necessary in the future it should be technologically feasible and not overly burdensome.

5. Proposed Attributes for an American AI Action Plan

a) Protect the First Amendment. A U.S. AI policy should include considerations of First Amendment, free speech, and fair use implications (i.e., how to balance those rights against potentially enormous harms, particularly those harms impacting privacy interests of children and non-public figures)

b) Insulate Against Anticipated Harms. Innovation in the AI space should also include (and an AI Action Plan should encourage), development of technological means to insulate against anticipated harms or concerns with the technology (these so-called, “antidotes” to AI systems/products/etc. should be an equally weighted priority along with promotion of AI development). For example, in the trademark space, as AI improvement can generate better fakes, such as fake specimens as would be submitted to the USPTO, systems designed to identify AI and potential fraud generated by AI should be developed in tandem.

The ability to detect AI, especially malicious uses of AI and AI-generated content, will help protect Americans from bad actors, AI systems developed or utilized in less regulated jurisdictions, or Countries of Particular Concern that might act contrary to the interests of the United States.

c) Transparent AI Use. AI uses should be reasonably identifiable by the public, though the means of achieving this should be reasonable or flexible enough to avoid stifling innovation, overburdening industry, or obsolescence.

d) Framework for Liability and Defenses. Although we do not support amending the USC, to the extent that one does not already exist in current regulations, there should be a framework for liability and defenses to liability for utilization and deployment of AI to engage in violations of or detection of violations of:

- IP
- Right of Publicity
- Privacy rights (and any dignitary harms)
- Consumer protection issues (such as false endorsement, misinformation, etc.)

- Protection of children

6. Conclusion

We applaud the Administration's decision to form an AI Action Plan that protects innovation and provides the competitive advantages needed to ensure that the U.S. continues to play a meaningful role in the development of new technology. We also recognize that a reasonable Action Plan will drive investment, create jobs, and bring opportunities. Further, the Administration's initiative to develop an AI Action Plan supports innovation while fostering a dynamic and competitive technological ecosystem. The US plays a significant role in fostering creativity and driving developments that have influenced industries inside and outside of its borders.

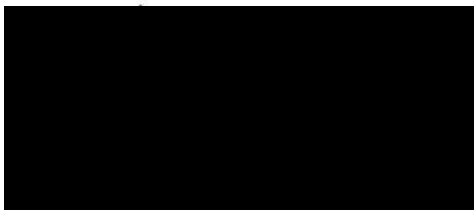
INTA is pleased to provide the preceding observations and recommendations. We are available to discuss our comments in more detail. Please contact Lori Schulman ([REDACTED]) or Jenny Simmons ([REDACTED]) for any additional information.

7. About INTA

Founded in New York City over 100 years ago, INTA is an Association of brand owners and professionals dedicated to supporting trademarks and complementary IP to foster consumer trust, economic growth, and innovation, and committed to building a better society through brands. Members include nearly 6,500 organizations, representing more than 34,350 individuals (trademark owners, professionals, and academics) from 185 countries, who benefit from the Association's resources, policy development, education and training, and international network. The majority of INTA's members are American based or have ties to American brands.

Thank you, in advance, for considering the views of INTA.

Sincerely yours,



Etienne Sanz de Acedo
INTA Chief Executive Officer